

		in criminal court) also prolonged the case. Thus, Plaintiff contends he should not be responsible for avoidable costs. But again, pursuant to the authority provided and discussed above, Plaintiff fails to meet his burden. Nevertheless, the Court exercises its discretion and strikes the “other” costs of \$22.50, as indicated above. <u>Judicial Errors, Threats, and Clerk Mistakes Created Unnecessary Work; Plaintiff’s Request for ADA Accommodations Were Ignored or Denied; Costs Should Be Denied to Avoid Chilling Constitutional Rights</u> None of these grounds are grounds upon which a Court can exercise its discretion to deny costs to Defendant SOCCCD. The prevailing party is entitled to all of its costs unless another statute provides otherwise. (See <i>Crib Retaining Walls, Inc. v. NBS/Lowry, Inc.</i>, supra, 47 Cal.App.4th at p. 890.) Absent such statutory authority, the court has no discretion to deny costs to the prevailing party. (Ibid.) Accordingly, the request to strike all costs on this ground is DENIED. But again, the Court strikes the “other” costs of \$22.50. <u>Total costs allowed: \$1,552.52 (\$1,575.02 – \$22.50)</u> Defendant to give notice.
60	Finnell vs. WC-Fullerton Ops, LLC 21-01233043	Motion for Termination of Sanctions NO TENTATIVE RULING – Parties to appear on Zoom or in-person at 10:00 AM.
61	Holler vs. The Horizons Community Association 21-01222398	Motion for Summary Judgment and/or Adjudication CONTINUED TO JUNE 4 TH , 2026 AT 10:00 AM
62	DFB Portal, LLC vs. Marco Fine Arts 23-01315041	Motion for Summary Judgment and/or Adjudication The Court is inclined to CONTINUE the Motion for Summary Judgment or Adjudication to 7/24/2026 at 10:00 AM, to allow briefing which addresses the appropriate procedure to resolve Defendants’ setoff defense and, specifically, whether consolidation of this action with <i>Marco Fine Arts, Inc. v. 240 Tech LLC</i> (2023-01317799) would more efficiently resolve the same; however, the Court requests counsel for both sides appear at the hearing, prepared to discuss these issues.